

Line 3

Case Name: *Kamila Kraba v. Armsby Lane Road Association*

Case No.: 25CV478200

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Kamila Kraba (“Plaintiff”) moves for an order:

1. Vacating the January 12, 2026, ex parte order that set aside the default previously entered against Defendant Armsby Lane Road Association (“ALRA”);
2. Confirming the Entry of Default against ALRA dated December 16, 2025; and
3. Striking the Answer and Cross-Complaint filed by ALRA on January 14, 2026, on the grounds that they were filed pursuant to a void order and by an association lacking legal counsel.

Notice of Motion (the “Motion”) at 2:20-29 (filed: Jan. 28, 2026).

The Motion is made under Code of Civil Procedure Sections 473(b) and 473(d) on the grounds that the January 12, 2026 ex parte order is void and was obtained through extrinsic fraud, specifically, that it was entered without proper notice, without a meaningful opportunity to be heard, based on an unauthorized appearance by an unincorporated association without counsel, an in reliance on a fraudulent Proof of Service and an inapplicable personal-service requirement. *Id.* at 2:30-35. ²

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Procedural Background

Plaintiff filed this civil action on October 21, 2025, alleging causes of action for: breach of contract; governance violations; reckless disregard of members’ rights; breach of fiduciary duty; reckless disregard of her rights to transparency, accuracy, due diligence related to Armsby Lane road repairs; rigid enforcement of Civil code § 845 without due process; selective enforcement of the 2004 road agreement; refusal to mediate per Civil Code § 5935; and Breach of fiduciary duty: VP serves as ALRA counsel. (Complaint PLD-

² For the record, the Court notes that these are the actual (albeit unusual) lines numbers in this Motion.

C-001, ¶¶ 8, 9, 11, MC-025 Attachment to the Complaint.)

ALRA did not respond to the complaint within the statutory time period. Therefore, on December 16, 2025, Plaintiff filed a Request for Entry of Default, which the clerk entered that same day.

On January 12, 2026, the Court granted ALRA's ex-parte application to set aside the default. On January 14, 2026, ALRA filed an answer and a verified cross-complaint through its president without counsel.

On January 28, 2026, Kraba filed her motion to vacate the January 12, 2026, order, confirm entry of default, and strike ALRA's answer and cross-complaint, asserting the order is void.

On August 19, 2026, the Court sustained Plaintiff's demurrer to ALRA's cross-complaint and found that ALRA had improperly filed its Ex Parte Application, Answer, and Cross-Complaint without licensed counsel in violation of California law prohibiting unincorporated associations from appearing in propria persona. The Court struck all three documents from the record and reinstated the December 16, 2025, default. The Court gave ALRA leave to file a First Amended Cross-Complaint through licensed counsel within 30 days, and leave to file a motion to set aside the December 16, 2025, default on equitable grounds and for leave to file an answer.

On August 31, 2026, ALRA's newly retained counsel filed a "Notice of Mootness" asserting that Plaintiff's Motion to Vacate is now moot and requesting that the September 9, 2026, hearing be taken off calendar. Plaintiff filed an objection to the Notice of Mootness on September 1, 2026, arguing that material issues remain unresolved and that only the moving party or the Court may remove a properly noticed motion from the calendar.

II. Legal Standard

Under Code of Civil Procedure section 473, subdivision (d): "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

A void order or judgment may be directly or collaterally attacked at any time. (*People v. American Contractors Indemnity Co.* (2004) 33 Cal.4th 653, 660; *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228.) Even when relief is not available under a statute, the court retains inherent power to vacate void orders. (*American Contractors*, *supra*, 33 Cal.4th at p. 660; see also *Plaza Hollister Ltd. Partnership v. County of San Benito* (1999) 72 Cal.App.4th 1, 15.)

III. Analysis of the Motion

At the August 19, 2026, hearing on Plaintiff's Demurrer to the ALRA's Cross-Complaint, the Court issued a comprehensive Order that addressed the relief Kraba now seeks in her Motion to Vacate. (See Order filed August 19, 2026).

The Court found that between January 12-14, 2026, ALRA filed its ex-parte application to set aside the December 16, 2025, Default, its answer, and its cross-complaint through its president Cisewski and not through a licensed attorney. Therefore the Court concluded that these documents were improperly filed by ALRA. (Order at 6:18-24)

The Court explicitly ruled: "the Court should not have granted ALRA's January 12, 2026, Ex Parte Application because it was improperly filed. By granting that improperly-filed Ex Parte Application to vacate the December 16, 2025, Default, the Court improperly vacated that Default". (Order at 8:17-21)

Consequently the Court ordered: (1) "ALRA's Ex Parte Application filed on January 12, 2026, when ALRA was not represented by counsel is STRICKEN; (2) "ALRA's Answer filed on January 14, 2026, when ALRA was not represented by counsel is STRICKEN"; (3) "The Clerk of the Court is ORDERED to re-enter and reinstate now the Default entered in favor of Kraba and against ALRA on December 16, 2025"; and (4) "Kraba's Demurrer to the Cross-Complaint is SUSTAINED, with ALRA given LEAVE TO AMEND to file a First Amended Cross-Complaint through its licensed counsel of record within 30 days of today." (Order at 9:9-18)

Therefore, the Court substantially granted the relief that Plaintiff now seeks in her Motion to Vacate. The practical effect of the Court's August 12, 2026 Order is this: the January 12, 2026 ex parte order is vitiated because the Court ordered reinstatement of the Default that the January 12, 2026 ex parte order had vacated. The January 12, 2026 ex parte order thus now has no force or effect whatever.

On August 31, 2026, ALRA filed its "Notice of Mootness as to Kamila Kraba's Motion to Vacate Void Order; Confirm Entry of Default; and Strike Answer and Cross-Complaint" asserting the motion is now moot considering the Court's August 19, 2026, Order. (Notice of Mootness at 1:26-2:2)

Plaintiff, however, now objects to the mootness of her Motion on the following grounds:

1. ALRA Cannot Unilaterally Remove Plaintiff's Motion. (Objection at 2:24-29)
2. "The foundational legal and factual errors contained in ALRA's Ex Parte Application remain active baseline disputes that must be formally ruled upon to prevent ongoing waste of judicial and community resources." (Objection at 3:74-77)

As part of her objections, Plaintiff now seeks binding determination on three legal issues: (1) service requirements under Code of Civil Procedure section 416.40, (2) applicability of Civil Code section 845(b) , and (3) ALRA's contractual authority to levy assessments and liens.

But Plaintiff's Motion to Vacate seeks relief (vacating an order, confirming default, striking pleadings), *not* declaratory rulings on abstract legal questions. The Motion is brought under Code of Civil Procedure sections 473(b) and 473(d) for specific remedial relief, not as a request for advisory opinions on legal issues that might arise in future proceedings.

Plaintiff cannot avoid that this Motion is Moot by arguing that collateral legal issues embedded in a motion deserve resolution after the primary relief has been granted through other means. The appropriate forum for establishing binding rulings on service requirements, statutory applicability, and contractual interpretation is in the context of actual motions or proceedings where those issues are determinative of relief that remains available.

At bottom, Plaintiff's argument essentially seeks to convert a motion for specific relief—which has already been granted in the August 19, 2026 Order—into a vehicle for obtaining advance rulings on legal issues that may arise in future proceedings. And giving advance rulings on issues that might arise in the future is something this Court does not do.

VI. Conclusion & Order

As the Court now finds that Plaintiff's Motion is moot in light of the August 19, 2026 Order, the Court **ORDERS** this moot Motion to be taken **OFF CALENDAR** now.

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Craig Rotbert v. Apele Builder, Inc., et al.*

Case No.: 26CV485448

See ORDER above. (As trial of the case already started on September 8, 2026—the trial date set at *Plaintiff's* request for trial preference (*see* Order, June 4, 2026)—the issues raised by Plaintiff in this Motion must now be presented to and determined by the Trial Judge, to whom this pre-trial Civil Case Manager defers. So this Motion in Department 16 today is **OFF CALENDAR.**)